

No. POL 512/2026

The Embassy of the United States of America presents its compliments to the Ministry of Foreign Affairs and Human Mobility of the Republic of Ecuador and has the honor to refer to the agreement between the Government of the United States of America and the Government of the Republic of Ecuador for cooperation in the examination of international protection requests, effected by exchange of diplomatic notes on July 16 and 23, 2025, and to propose the following non-binding understanding between the Government of the United States of America and the Government of Ecuador (hereinafter referred to individually as a “Participant” and collectively as “Participants”). Under this non-binding understanding:

- The Participants intend to arrange the transfer from the United States to Ecuador of certain third-country nationals present in the United States.

DIPLOMATIC NOTE

- The Government of Ecuador, in accordance with its international obligations and in compliance with its domestic laws, intends to provide appropriate migratory processing for the transfer of third-country nationals to their country of origin, residence, or other destination, subject to the assurances provided herein.
- The Government of the United States of America may in its complete discretion propose to the Government of Ecuador the transfer of such third-country nationals, and the Government of Ecuador may in its complete discretion consider accepting such a proposal in whole or in part.
- The Government of Ecuador assures the Government of the United States of America that it intends to treat any third-country nationals transferred from the United States to Ecuador in a manner that is in accordance with its obligations under the Convention Relating to the Status of Refugees, done at Geneva on July 28, 1951; the Protocol Relating to the Status of Refugees, done at New York on January 31, 1967; the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, adopted in New

York on December 10, 1984; any other international legal obligations; and its national constitution, laws, regulations, and immigration and visa policies. Consistent with this intention, the Government of Ecuador assures the Government of the United States of America that it would treat any third-country nationals transferred from the United States to Ecuador in a manner that is in accordance with its international legal obligations and that the third-country nationals removed to Ecuador would not be subjected to persecution on account of race, religion, nationality, membership in a particular social group, or political opinion, or torture in Ecuador, or further transferred to any country in which they would be subjected to persecution on account of race, religion, nationality, membership in a particular social group, or political opinion, or torture.

- The Participants intend to develop operating procedures to assist with implementing this understanding via a later instrument that *inter alia* includes clear criteria for determining eligibility for transfer to Ecuador. The Participants intend to consult to resolve

any questions about interpretation or implementation of this understanding.

- Either Participant may discontinue its participation in this understanding at any time but, in such case, intends to provide written notice to the other Participant through diplomatic channels.
- The Government of the United States of America intends to review foreign assistance funds that might be available to recognize the cooperation of the Government of Ecuador consistent with this understanding.
- Nothing in this understanding is intended to create any rights or obligations upon the Participants under international or domestic law, including with respect to the disbursement or obligation of funds. All actions taken under this understanding are subject to the availability of funds and the applicable laws and regulations of both Participants.

If this proposal is acceptable to the Government of Ecuador, the Government of the United States of America proposes that this note, together with the affirmative reply from the Government of Ecuador, would constitute an understanding between the two governments that would become effective upon the date of the Government of Ecuador's reply note.

The Embassy of the United States of America avails itself of this opportunity to renew to the Ministry of Foreign Affairs and Human Mobility of the Republic of Ecuador the assurances of its highest consideration.

Embassy of the United States of America,

Quito, May 7, 2026.



Nota Nro.MREMH-MREMH-2026-0044-N

El Ministerio de Relaciones Exteriores y Movilidad Humana del Ecuador saluda atentamente a la Embajada de los Estados Unidos de América en Quito y tiene el honor de referirse a la recepción de la Nota N° POL 512/2026 de la Embajada, de fecha 07 de mayo de 2026, cuyo texto es el siguiente:

“No. POL 512/2026

La Embajada de los Estados Unidos de América saluda al Ministerio de Relaciones Exteriores y Movilidad Humana de la República del Ecuador y tiene el honor hacer referencia al acuerdo entre el Gobierno de los Estados Unidos de América y el Gobierno de la República del Ecuador para la cooperación en el examen de solicitudes de protección internacional, hecho por canje de notas diplomáticas el 16 y 23 de julio de 2025, y proponer el siguiente entendimiento no-vinculante entre el Gobierno de los Estados Unidos de América y el Gobierno del Ecuador (en adelante, denominados de manera individual el “Participante” y de manera colectiva los “Participantes”). En virtud de este entendimiento no vinculante:

- *Los Participantes tienen la intención de organizar el traslado desde los Estados Unidos al Ecuador de determinados nacionales de terceros países presentes en los Estados Unidos.*
- *El Gobierno del Ecuador, conforme a sus obligaciones internacionales y en observancia a la legislación interna, tiene la intención de proporcionar procesamiento migratorio adecuado para el traslado de nacionales de terceros países a su país de origen, de residencia u otro destino, con sujeción a las garantías aquí establecidas.*
- *El Gobierno de los Estados Unidos de América podrá, a su entera discreción, proponer al Gobierno del Ecuador el traslado de esos nacionales de terceros países, y el Gobierno del Ecuador podrá, a su entera discreción, considerar aceptar esa propuesta en su totalidad o en parte.*
- *El Gobierno del Ecuador asegura al Gobierno de los Estados Unidos de América que tiene la intención de tratar a los nacionales de terceros países trasladados desde los Estados Unidos al Ecuador de manera coherente con sus obligaciones en virtud de la Convención sobre el Estatuto de los Refugiados, hecha en Ginebra el 28 de julio de 1951; del Protocolo sobre el Estatuto de los Refugiados, hecho en Nueva York el 31 de enero de 1967; de la Convención contra la Tortura y Otros Tratos o Penas Crueles, Inhumanos o Degradantes, adoptada en Nueva York el 10 de diciembre de 1984; cualesquiera otras obligaciones jurídicas internacionales; y su constitución, leyes, reglamentos y políticas de inmigración y visas nacionales. De acuerdo con esta intención, el Gobierno del Ecuador asegura al Gobierno de los Estados Unidos de América que trataría a cualquier nacional de un tercer país trasladado desde los Estados Unidos al Ecuador en consonancia con sus obligaciones jurídicas internacionales y que los nacionales de terceros países deportados al Ecuador no serían objeto de persecución por motivos de raza, religión, nacionalidad, pertenencia a un determinado grupo social u opiniones políticas, o tortura en el Ecuador, o a ser trasladados posteriormente a cualquier país en el que pudieran ser objeto de persecución por motivos de raza, religión, nacionalidad, pertenencia a un determinado grupo social u opiniones políticas, o de tortura.*

- *Los Participantes se proponen formular, procedimientos operativos que contribuyan a la aplicación del presente entendimiento mediante un instrumento posterior, incluyendo entre otros, criterios claros para determinar la elegibilidad para el traslado a la República del Ecuador. Los Participantes tienen la intención de realizar consultas para resolver cualquier cuestión relativa a la interpretación o aplicación del presente entendimiento.*
- *Cualquiera de los Participantes puede suspender su participación en el presente entendimiento en cualquier momento, en cuyo caso tiene la intención de notificárselo por escrito al otro Participante por vía diplomática.*
- *El Gobierno de los Estados Unidos de América tiene la intención de revisar los fondos de ayuda exterior que puedan estar disponibles para reconocer la cooperación del Gobierno del Ecuador, de conformidad con este entendimiento.*
- *Nada de lo dispuesto en el presente entendimiento tiene por objeto generar derechos u obligaciones para los Participantes en virtud de las leyes internacionales o nacionales, incluso respecto al desembolso u compromiso de fondos. Todas las gestiones realizadas en virtud del presente entendimiento están sujetas a la disponibilidad de fondos y a las leyes y la reglamentación aplicables de ambos Participantes.*

Si esta propuesta es aceptable para el Gobierno del Ecuador, el Gobierno de los Estados Unidos de América propone que la presente nota, junto con la respuesta afirmativa del Gobierno del Ecuador, constituya un entendimiento entre los dos gobiernos que sería efectivo en la fecha de la nota de respuesta del Gobierno del Ecuador.

La Embajada de los Estados Unidos de América se vale de esta oportunidad para reiterar al Honorable Ministerio de Relaciones Exteriores y Movilidad Humana de la República del Ecuador las seguridades de su más alta consideración.

*Embajada de los Estados Unidos de América,
Quito, 7 de Mayo de 2026"*

El Ministerio de Relaciones Exteriores y Movilidad Humana del Ecuador confirma que el Gobierno del Ecuador acepta la propuesta formulada en la nota de la Embajada. En consecuencia, la nota de la Embajada y la presente nota de respuesta constituyen un entendimiento no vinculante entre el Gobierno del Ecuador y el Gobierno de los Estados Unidos de América que se hace efectivo en la fecha de la presente Nota.

El Ministerio de Relaciones Exteriores y Movilidad Humana del Ecuador aprovecha la oportunidad para reiterar a la Embajada de los Estados Unidos de América en Quito las seguridades de su más alta consideración.

Quito, 21 de mayo de 2026





TRANSLATION/COMPARISON

**[Shield]
Republic of Ecuador**

Ministry of Foreign Affairs and Human Mobility

Note No. MREMH-MREMH-2026-0044-N

The Ministry of Foreign Affairs and Human Mobility of Ecuador presents its compliments to the Embassy of the United States of America in Ecuador and has the honor to acknowledge receipt of Note No. POL 512/2026 of May 7, 2026, which reads as follows:

Quote:

The Embassy of the United States of America presents its compliments to the Ministry of Foreign Affairs and Human Mobility of the Republic Ecuador and has the honor to refer to the agreement between the Government of the United States of America and the Government of the Republic of Ecuador for cooperation in the examination of international protection requests, effected by exchange of diplomatic notes on July 16 and 23, 2025, and to propose the following non-binding understanding between

the Government of the United States of America and the Government of Ecuador (hereinafter referred to individually as a “Participant” and collectively as “Participants”). Under this non-binding understanding:

- The Participants intend to arrange the transfer from the United States to Ecuador of certain third-country nationals present in the United States.
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- The Government of the United States of America may in its complete discretion propose to the Government of Ecuador the transfer of such third-country nationals, and the Government of Ecuador may in its complete discretion consider accepting such a proposal in whole or in part.
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Status of Refugees, done at Geneva on July 28, 1951; the Protocol Relating to the Status of Refugees, done at New York on January 31, 1967; the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, adopted in New York on December 10, 1984; any other international legal obligations; and its national constitution, laws, regulations, and immigration and visa policies. Consistent with this intention, the Government of Ecuador assures the Government of the United States of America that it would treat any third-country nationals transferred from the United States to Ecuador in a manner that is in accordance with its international legal obligations and that the third-country nationals removed to Ecuador would not be subjected to persecution on account of race, religion, nationality, membership in a particular social group, or political opinion, or torture in Ecuador, or further transferred to any country in which they would be subjected to persecution on account of race, religion, nationality, membership in a particular social group, or political opinion, or torture.

- The Participants intend to develop operating procedures to assist with implementing this understanding via a later instrument that *inter alia* includes clear criteria for determining eligibility for transfer to the

Republic of Ecuador. The Participants intend to consult to resolve any questions about interpretation or implementation of this understanding.

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- The Government of the United States of America intends to review foreign assistance funds that might be available to recognize the cooperation of the Government of Ecuador consistent with this understanding.
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If this proposal is acceptable to the Government of Ecuador the Government of the United States of America proposes that this note, together with the affirmative reply from the Government of Ecuador, would constitute an understanding between the two governments that would become effective upon the date of the Government of Ecuador's reply note.

The Embassy of the United States of America avails itself of this opportunity to renew to the Ministry of Foreign Affairs and Mobility of the Republic of Ecuador the assurances of its highest consideration.

Embassy of the United States of America
Quito, May 7, 2026

Unquote.

The Ministry of Foreign Affairs and Human Mobility of Ecuador confirms that the Government of Ecuador accepts the proposal set forth in the Embassy's note. Accordingly, the Embassy's note and this note in reply would constitute a non-binding understanding between the Government of Ecuador and the Government of the United States of America which becomes effective on the date of this note.

The Ministry of Foreign Affairs and Human Mobility of Ecuador avails itself of this opportunity to renew to the Embassy of the United States of America the assurances of its highest consideration.

[Ministry stamp] [Initialed]
Quito, May 21, 2026